

**CITY OF SAN MATEO  
ORDINANCE NO. 2026-07**

**AN ORDINANCE ADDING SAN MATEO MUNICIPAL CODE CHAPTER 2.23 TO ESTABLISH THE HISTORIC  
RESOURCES COMMISSION**

WHEREAS, the City of San Mateo is authorized under the State of California to regulate land use and protect historic and architectural resources for the public health, safety, and general welfare; and

WHEREAS, the City's Historic Preservation Ordinance (Chapter 27.66) was updated to reflect current best practices in preservation planning, align with state law and implement General Plan 2040; and

WHEREAS, the updated Historic Preservation Ordinance included the establishment of a Historic Review Commission to function as the Ordinance's review body.

NOW, THEREFORE, THE COUNCIL OF THE CITY OF SAN MATEO ORDAINS AS FOLLOWS:

**Section 1.** Chapter 2.23 of the San Mateo Municipal Code is added to Title 2 as follows:

**Chapter 2.23  
Historic Resources Commission**

**2.23.010 Organization**

The Historic Resources Commission shall consist of no more than five members appointed by the Council, and two non-voting youth advisory members who must be at least 13 years old, and no more than 17 years old at the time of appointment ("Youth Commissioners"). Youth Commissioners must present written documentation of parental or guardian consent to be considered for appointment. Youth commissioners shall serve only in an advisory capacity and shall not count towards a quorum of the commission. In making appointments, the Council shall prioritize appointing applicants who are professionals in the discipline of history, architectural history, planning or a related field, licensed architects or engineers specifically qualified by reason of training or experience in building rehabilitation, accredited green building or construction management professionals, or those who demonstrate special interest and experience in the City's history.

Each member of the Historic Resources Commission shall serve at the pleasure of Council and for a term of four years, or until the appointment and qualification of a successor, except that the initial terms of the first members appointed shall be determined by lot at their first meeting so that each year at least one term will expire. Thereafter, all appointments shall be for a term of four years. No member shall be eligible for reappointment after serving two consecutive four-year terms. Each Youth Commissioner shall serve at the pleasure of the Council for a term of one year and until the appointment and qualification of a successor. Youth Commissioners may be reappointed for one additional one-year term.

**2.23.020 Meetings**

The Historic Resources Commission shall elect a chair and vice-chair to serve at the pleasure of the Commission. The Commission may adopt reasonable rules and regulations for the conduct of its business. A

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regular time and place of meetings shall be established and adhered to in the manner of holding public meetings for legislative bodies in the state. All meetings shall be open to the public unless by law otherwise provided.

**2.23.030 Powers and Duties**

The Historic Resources Commission shall have the following powers and duties:

(a) To recommend to the City Council, as provided in Chapter 27.66:

(1) The approval or disapproval of applications for Landmarks.

(2) The approval or disapproval of applications for Historic Districts.

(3) The approval or disapproval of applications to remove a Landmark or Historic District from the San Mateo Historic Resources Inventory.

(4) The approval or disapproval of applications for Mills Act contracts.

(b) To review and approve or disapprove applications, in whole or part, for Certificates of Appropriateness pursuant to Chapter 26.66.

(c) To perform any other functions that may be designated or assigned by the City Council.

**Section 2. Environmental Determination.** In accordance with California Environmental Quality Act (CEQA) Guidelines, section 15378(b)(5), this action is an administrative activity that will not result in direct or indirect physical changes in the environment. This action is also exempt pursuant to CEQA Guidelines section 15061(b)(3) because it can be seen with certainty that there is no possibility that establishing a Historic Resources Commission may have a significant effect on the environment.

**Section 3. Severability.** In the event any section, clause or provision of this ordinance shall be determined invalid or unconstitutional, such section, clause or provision shall be deemed severable and all other sections or portions hereof shall remain in full force and effect.

**Section 4. Publication.** This Ordinance shall be published in summary in a newspaper of general circulation, posted in the City Clerk's Office, and posted on the City's website, all in accord with Section 2.15 of the City Charter.

**Section 5. Legislative History and Effective Date.** This ordinance was introduced on May 4, 2026, and adopted on May 18, 2026, and shall be effective 30 days after its adoption.

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The foregoing Ordinance was adopted by the City Council of the City of San Mateo, State of California by the following vote:

AYES: Council Members Loraine, Fernandez, Cwirko-Godycki, Diaz Nash, and Newsom

NOES: None

ABSENT: None

ATTEST:

The image shows a handwritten signature in blue ink, which appears to read "Martin McTaggart", next to the official seal of the City of San Mateo, California. The seal is circular with a tree in the center and the words "CITY OF SAN MATEO" and "CALIFORNIA" around the perimeter.

Martin McTaggart, City Clerk

The image shows a handwritten signature in blue ink that reads "Adam Loraine".

Adam Loraine, Mayor